NATIONAL COMPANY LAW TRIBUNAL
NEW DELHI BENCH COURT-IV

C.A. NO-195 (ND)/2021
IN
COMPANY APPLICATION NO. CA (CAA)-43 (ND)/2020

SECTION 230 to 232 OF THE COMPANIES ACT, 2013

IN THE MATTER OF SCHEME OF AMALGAMATION

AMONGST

Priyavrat Infrastructure Private Limited

... Petitioner No.1 /Transferor Company No. 1

AND

Mehul Finvest Private Limited

...Petitioner No.2/Transferor Company No.2

AND

Jubilant E&P Ventures Private Limited

...Petitioner No.3/Transferor Company No. 3

AND

Diamond Rock Private Limited

...Petitioner No.4/Transferor Company No. 4

AND

Diligent Services Private Limited

...Petitioner No.5/Transferor Company No. 5

WITH

Parmanand Commercial Private Limited

...Petitioner No.6/Transferee Company

ORDER DELIVERED ON : 24.12.2021

24/12/21

CORAM:

SH. DHARMINDER SINGH, HON'BLE MEMBER (JUDICIAL)

SH. NARENDER KUMAR BHOLA, HON'BLE MEMBER (TECHNICAL)

ORDER

PER- DHARMINDER SINGH, HON'BLE MEMBER (J)

1. The present application no. CA.195/ND/2021, has been filed by the applicant companies for modification in the proposed Scheme of Amalgamation by deleting part-III of the proposed Scheme, which deals with amalgamation of Diligent Services Private Limited (Transferor Company No. 5) with Transferee Company.

2. Facts in brief of the present case are that the all the transferor companies and the transferee company have jointly filed CP. CAA 43/ND/2020 for Sanctioning of the proposed Scheme of Amalgamation, as contemplated between the parties, under Section 230-232 of the Companies Act, 2013. However, on 25.03.2021, all the applicant companies have passed their separate Board Resolutions for modification in Scheme of Amalgamation. As per the averments in the application Clause 30.1 of the Scheme allows modifications in the Scheme. Clause 30.1 has been reproduced below:

> " *On behalf of the transferor companies and transferee company, the Board of Directors or such other person or persons, as the respective Board may authorize, may also consent jointly but not individually, on behalf of all persons concerned, to any modifications or amendments to the Scheme and without prejudice to the generality of the foregoing, any modification to the Scheme involving withdrawal of any of the parties to the Scheme at any time and for any reason*

24/12/21

whatsoever, or to any conditions or limitation that the Hon'ble NCLT or any other authority may deem fit to direct or impose or which may be otherwise be considered necessary, desirable or appropriate by the Boards of Transferor Companies and the Transferee Company, and solve all difficulties that may arise for carrying out the Scheme and do all acts, deed and things necessary for putting the Scheme into the effect."

3. We have heard the Ld. Counsel for the applicants and perused the case records. As per the scheme, the Board of Directors of the companies are empowered for the modification or amendment in the proposed Scheme. Since Board of Directors of all the applicant companies have approved the deletion of Part-III of the proposed Scheme. The amendment as prayed is hereby allowed. The part-III of the proposed Scheme, which deals with amalgamation of Diligent Services Private Limited (Transferor Company No. 5) stands deleted.

Resultantly, the application is hereby allowed.

List the matter on **05.01.2021** for further proceeding.

Sd/-

(NARENDER KUMAR BHOLA)
MEMBER (T)

Sd/-

(DHARMINDER SINGH)
MEMBER (J)

NOTE

Pronounced today in open court in pursuance of power under Rule 151 of NCLT Rules, 2016 as, Mr. Narender Kumar Bhola, Hon'ble Member (T) is not holding Court today.

Vishal Rana
24.12.2021
Court Officer